

Ratnesh Kumar Singh vs The State Of Madhya Pradesh on 10 January, 2025

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IN THE HIGH COURT OF MADHYA PRADESH
AT JABALPUR

BEFORE

HON'BLE SHRI JUSTICE VIVEK JAIN

WRIT PETITION NO. 2877 OF 2023

RATNESH KUMAR SINGH
VS.

STATE OF MADHYA PRADESH AND OTHERS.

Appearance:

Shri Abhishek Pandey - Advocate for the petitioner.

Shri Tapan Bathre- Panel Lawyer for the respondent-State.

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The present petition has been preferred challenging the order dated 01.01.2023 (Annexure P/11) and seeking a further direction to the respondents to give joining to the petitioner on the post of Constable (Driver).

2. It is the case of the petitioner that the petitioner appeared in the Police Constable Test-2012 conducted by the M.P. Professional Board and he qualified for the post of Constable (Driver). It is the case of the petitioner that he was not given joining on the post despite having qualified the written test as well as Trade Test. Later on it was found that the respondents have not given joining to the petitioner on account of a criminal case registered against him at Police Station Bhalumada, Tehsil- Kotma, District Anuppur at Crime No. 163/2009 under Sections 325, 34 of IPC wherein he had been acquitted on the basis of compromise. The respondents had refused to give joining to the petitioner despite the position that he had truthfully disclosed the said

criminal case against the petitioner which had already concluded prior to applying for the post in question. The petitioner then filed W.P. No. 19536/2013 before this Court and the said writ petition was disposed of directing the respondents to decide the representation which was then rejected vide order Annexure P/4 dated 12.03.2014. The petitioner again filed W.P. No. 11516/2014 before this Court and the said petition was disposed of directing the respondents to consider the case of the petitioner in terms of the judgment of the Supreme Court in the case of Avtar Singh Vs. Union of India & others (2016) 8 SCC 471. After the said order was passed in W.P. No. 11516/2014 on 15.03.2017, the respondents again rejected the representation of the petitioner vide order Annexure P/6 dated 06/07/2017 and again the petitioner filed W.P. No. 1203/2018 which was disposed of directing the respondents to reconsider the case of the petitioner in terms of the judgment of the Supreme Court in the case of Pawan Kumar Vs. Union of India & another, 2023 (12) SCC 317. The respondents again rejected the representation of the petitioner vide order Annexure P/11 dated 09.01.2023 which is now under challenge in the present petition.

3. It is argued by learned counsel for the petitioner while assailing the said orders that the petitioner though was applicant and succeeded in competitive examination for being appointed as uniformed member of the Police Force but the post to which he applied was the post of Constable (Driver) not the post of regular police. It is further contended that the offences alleged against the petitioner were Section 325/34 of IPC and as per the order dated 24.07.2018 issued by the Home Department of the State, notifying various offences as offences involving moral turpitude, offence under Section 325 of IPC is not notified as an offence involving moral turpitude. It is further argued that in all the three orders rejecting the representation of the petitioner repeatedly vide Annexure P/4, P/6 and P/11 no finding has been given nor any fact has been cited that what was the injury which had been incurred by the injured person so as to justify prosecution of the petitioner under section 325 of IPC. It is stated that though the earlier circular of the Home Department dated 05.6.2003 did enumerate offence under section 325 IPC as one involving moral turpitude, but subsequently, the State itself has realised that it is not one involving moral turpitude and issued the fresh order dated 24.7.2018. It is argued that what is material is the offence as per Indian Penal Code, and once there was no change in definition of the offence in IPC, there is no reason why the benefit of revised circular be not given to the petitioner, as held by a coordinate bench in WP 11143/2017, decided on 04.10.2023, wherein this Court has held as under :-

"15. The language of Sections 323, 325 and 294 of IPC as described in the IPC remained same right from the date of alleged offences committed by the petitioner. Different interpretations were given by the Department in 2003 and 2018 whereby similar offences were treated as 'moral turpitude' or otherwise.

16. It is clear that the nature of offence as described in the IPC will determine whether it is 'moral turpitude' or not. If department itself realized while issuing

Circular dated 24.7.2018 that the aforesaid offences do not fall within the fore-corners of 'moral turpitude', merely because the previous circular took a different view to some extent will not improve the case of the employer"

4. Taking this court through the allegations of the prosecution against the petitioner, it is contended that the prosecution allegation was that it was the dispute between the persons of the same locality and initially the brother of the petitioner namely Rupesh Kumar had caught hold of neck of the complainant and pushed him to a drain, at that time the petitioner and his father are also stated to have come to help the brother of the petitioner namely Rupesh Kumar who is stated to be the actual assailant. The co-accused Rupesh Kumar was further alleged to have shook wife of the complainant by catching hold of her hands. It is argued that there is no single averments in all three impugned orders that what was the injury or grievous hurt inflicted upon the injured so as to justify the prosecution under Section 325 of the IPC and therefore, merely on the basis of the petitioner being prosecuted at some point of time in the year 2009 under Section 325 of IPC cannot be read to be a disqualification for him to enter public employment throughout his life. It further argued that the allegation against him was false and he was falsely roped in and since the complainant party was neighbour and therefore, as usually happens in practice prevailing in India, compromise take place between the parties when better senses prevailed on the parties. If the petitioner did not opt to face a full fledged trial in a false offence registered against him, he cannot be said to have incurred a life long disqualification.

5. It is further contended that the acquittal was in compromise because the case against the petitioner was false and the petitioner did not opt to prolong the matter by opting for a full fledged trial and then wait for acquittal after full fledged trial. In such trivial cases involving false allegations, compromise should be promoted rather than be discouraged. Learned counsel for the petitioner relied on the judgment of the Supreme Court in the case of State of Kerala and others Vs. Durgadas and another [SLP (Civil) No. 2188/2024] so also the judgments in the cases of Pawan Kumar (supra) and Avtar Singh (supra). It is contended that the respondents have wrongfully rejected the case of the petitioner repeatedly. Reliance is also placed on judgment of the coordinate Bench of this Court in W.P. No. 3205/2020 decided on 04.11.2024.

6. Per contra, the prayer is opposed by the State Government on the ground that the petitioner faced prosecution under Section 325 of IPC and the acquittal was not clean and Honorable acquittal but was based on compromise. It is contended that the acquittal upon compromise being clean or not is not relevant for the purpose of public employment because the antecedents and character of a contender to a uniformed Force has to be assessed by employer/ State and if a person faced prosecution in the past and did not earn acquittal on merits, then the State can always reject the candidature of such candidate. Reliance is placed on judgment of the Supreme Court in the case of Union of India and others Vs. Methu Meda (2022) 1 SCC 1 (para 17).

7. Heard.

8. In the present case the allegation against the petitioner as evident in the order Annexure P/11 whereby his representation has been rejected, is that the complainant Sanjay Ram had lodged a

complaint on 12.05.2009 that Rupesh Kumar (brother of the petitioner) came and caught hold of the complainant by neck and then the present petitioner and his father were also alleged to have reached the spot and all of them had then pushed the complainant in a drain and co-accused Rupesh Kumar shook the wife of complainant by catching hold of her hand. The impugned order Annexure P/11 mentions only this much of allegation against the petitioner and nothing else. To justify prosecution under Section 325 of IPC, the basic ingredients is causing grievous hurt. In the orders Annexures P/4, P/6 or in the present impugned order P/11, or even in the reply filed by the State, nothing has been stated that what was the grievous hurt caused to the complainant on account of which the petitioner was prosecuted under Section 325/34 of IPC along with his father and brother. This establishes that there might not have been any injury caused to the complainant to justify prosecution under Section 325 of IPC otherwise that fact might have been mentioned by the respondents in any of the impugned orders issued by them from time to time vide Annexure P/4, P/6 and P/11 or atleast in the reply filed in this case. This is the fourth round of litigation before this Court by the present petitioner and thrice over it has remanded the matter to the respondents to consider the candidature of the petitioner and in none of the orders passed by the respondents in all the three rounds of litigation, a single word has been mentioned that what was the injury which was caused to the complainant in the criminal case which was registered against the petitioner. Therefore, there seems to be force in the contention of the petitioner that there has not been any meaningful consideration on the case of the petitioner and that the case against the petitioner under Section 325/34 of IPC was false and therefore, just to avoid prolonged agony, the parties entered into compromise. This Court does not deem fit to remand the matter to the respondents for reconsideration for fourth time because already 3 rounds of remand have taken place by orders of this Court passed from time to time since 2014 till 2022.

9. The acquittal order Annexure P/2 is on record which indicates that it was acquittal before the Lok-Adalat under Section 320 of Cr.P.C. with mutual consent of the parties. As nothing has been placed on record by the respondents that how prosecution against the petitioner under Section 325 of IPC was justified, this court is unable to give much value to mere fact to the prosecution under Section 325 of IPC to sustain the stand of the respondents that for all times to come the petitioner is disqualified to enter into public employment.

10. The dispute was between neighbours. The coordinate Bench in W.P. No. 3205/2020 has considered the position that it is a common knowledge that in many such trivial criminal cases where false allegations are made against accused persons, which is a practice prevalent in India, many a times either compromise takes place or the witnesses turn hostile and the accused are acquitted of the offences. The coordinate Bench held that once the Court comes to considered opinion that initial case itself was false, then it is unjustified and unwarranted for the authorities to apply the test of honourable acquittal on a person falsely implicated. The coordinate Bench held as under:-

"13. In the present case, the witness has stated that he suffered injuries on account of fall only. It is a common knowledge that in many such trivial criminal cases where false allegations are made against accused persons, which is a practice prevalent in India, many a times either compromise takes place or the witnesses turn hostile for

whatever be the reasons, and the accused are acquitted of the offences. In such circumstances, this Court is also of the considered opinion that when the initial case itself was false, it is unjustified and unwarranted for the authorities to apply the test of honourable acquittal on a person falsely implicated. Thus, it cannot be said that the acquittal which has occasioned on account of witnesses turning hostile or compromise between the parties, is not an honourable acquittal."

11. In the present case also for the foregoing reasons as narrated above, this court has come to conclusion that very prosecution of the petitioner under Section 325 of IPC was unjustified because in none of the orders Annexure P/4, P/6 and P/11 there is single word to justify that how the prosecution of the petitioner under Section 325 of IPC was valid or lawful or there was some prima facie material available with the prosecuting agency on the basis of which the petitioner could have been prosecuted. As none of the orders mentioned above contains a single word about grievous hurt sustained by the complainant of the case. It is evident that prosecution of the petitioner under Section 325 of IPC was wholly unjustified and initial case against the petitioner itself was false.

12. If in such case merely to prevent continued agony a person enters into compromise to bury the matter then and there, he cannot be said to have incurred the disqualification to enter public employment in his entire life.

13. The Supreme Court in the case of Deputy Inspector General of Police & another Vs. S. Samuthiram (2013) 1 SCC 598, considered that when acquittal can be held to be a honourable acquittal and also that a person of doubtful integrity cannot be allowed to work in the department.

14. Subsequently, in the case of Avtar Singh (supra) the supreme Court has held as under:-

38. We have noticed various decisions and tried to explain and reconcile them as far as possible. In view of the aforesaid discussion, we summarise our conclusion thus:

38.1. Information given to the employer by a candidate as to conviction, acquittal or arrest, or pendency of a criminal case, whether before or after entering into service must be true and there should be no suppression or false mention of required information.

38.2. While passing order of termination of services or cancellation of candidature for giving false information, the employer may take notice of special circumstances of the case, if any, while giving such information. 38.3. The employer shall take into consideration the government orders/instructions/rules, applicable to the employee, at the time of taking the decision.

38.4. In case there is suppression or false information of involvement in a criminal case where conviction or acquittal had already been recorded before filling of the application/verification form and such fact later comes to knowledge of employer, any of the following recourses appropriate to the case may be adopted:

38.4.1. In a case trivial in nature in which conviction had been recorded, such as shouting slogans at young age or for a petty offence which if disclosed would not have rendered an incumbent unfit for post in question, the employer may, in its discretion, ignore such suppression of fact or false information by condoning the lapse.

38.4.2. Where conviction has been recorded in case which is not trivial in nature, employer may cancel candidature or terminate services of the employee.

38.4.3. If acquittal had already been recorded in a case involving moral turpitude or offence of heinous/serious nature, on technical ground and it is not a case of clean acquittal, or benefit of reasonable doubt has been given, the employer may consider all relevant facts available as to antecedents, and may take appropriate decision as to the continuance of the employee.

38.5. In a case where the employee has made declaration truthfully of a concluded criminal case, the employer still has the right to consider antecedents, and cannot be compelled to appoint the candidate. 38.6. In case when fact has been truthfully declared in character verification form regarding pendency of a criminal case of trivial nature, employer, in facts and circumstances of the case, in its discretion, may appoint the candidate subject to decision of such case. 38.7. In a case of deliberate suppression of fact with respect to multiple pending cases such false information by itself will assume significance and an employer may pass appropriate order cancelling candidature or terminating services as appointment of a person against whom multiple criminal cases were pending may not be proper.

38.8. If criminal case was pending but not known to the candidate at the time of filling the form, still it may have adverse impact and the appointing authority would take decision after considering the seriousness of the crime.

38.9. In case the employee is confirmed in service, holding departmental enquiry would be necessary before passing order of termination/removal or dismissal on the ground of suppression or submitting false information in verification form.

38.10. For determining suppression or false information attestation/verification form has to be specific, not vague. Only such information which was required to be specifically mentioned has to be disclosed. If information not asked for but is relevant comes to knowledge of the employer the same can be considered in an objective manner while addressing the question of fitness. However, in such cases action cannot be taken on basis of suppression or submitting false information as to a fact which was not even asked for.

38.11. Before a person is held guilty of suppressio veri or suggestio falsi, knowledge of the fact must be attributable to him.

The Supreme Court has held that if acquittal had already been recorded in a case involving moral turpitude or offence of heinous/serious nature, on technical ground and it is not a case of clean acquittal, or benefit of reasonable doubt has been given, then the employer may consider all relevant facts available as to antecedents, and may take appropriate decision as to the continuance of the employee. It was further held that even if the employee had made declaration truthfully of concluded criminal case then also employer still has right to consider the antecedents.

15. Thereafter, in Union Territory, Chandigarh Administration and others Vs. Pradeep Kumar and others 2018(1)SCC 797, the Supreme Court held that even though acquittal is based on compromise it is open to screening committee to examine the suitability of the candidate and take appropriate decision. The Supreme Court has considered the earlier judgment in the case of Mehar Singh (supra) and wherein it has held that the Police Force is a disciplined Force and compromise and settlement are encouraged to bring about peaceful and amicable atmosphere in the society and they have to be encouraged also to reduce the arrears of cases but these considerations cannot be brought in the cases of public employment in order to maintain integrity and high standard of the Police Force.

16. In the case of State of Rajasthan Vs. Lovkush Meena reported in AIR 2021 SC 1610, the supreme Court has held as under:-

"16. In a similar factual scenario to the extent of recruitment to the posts of Subedars, Platoon Commandants and Inspectors of Police in pursuance to an advertisement and disqualification of one of the candidates being assailed resulted in a judgment of this Court in State of Madhya Pradesh &Ors. v. Abhijit Singh Pawar⁴ by a two Judge Bench. Suffice to say, in the factual context, a case registered in the year 2006 was pending on the date when affidavit was tendered and within four days the compromise was entered into between the original complainant and the respondent. An application for compounding was filed. The compounding was found to be permissible as it dealt with offences under Sections 294,325/34,323,506 Part II of the IPC and on discussion of the legal principle enunciated in the earlier judgments, it was opined that the earlier judgment in the case of Commissioner of Police v Mehar Singh⁵ it was opined that there is no doubt about the proposition that even after the disclosure is made by a candidate, the employer would be well within his rights to consider the antecedent and suitability of the candidate. In this context, it was held, the employer is entitled to 4(2018) 18 SCC 733 5(2013) 7 SCC 685 take into account the job profile for which the selection is undertaken, the severity of the charge levelled against the candidate and whether acquittal in question was an honourable acquittal or was merely on the ground of benefit of doubt as a result of composition. We may also add that one aspect which was noticed which is common with the present case is the absence of any suggestion that the decision was actuated by malafide or suffered on other accounts except the issue raised of the subsequent circular applicable. "

17. In Pramod Singh Kirar Vs. State of Madhya Pradesh & others reported in 2023 (1) SCC 423, the Supreme Court considered the case of a contender for public employment arising from matrimonial dispute under Section 498-A of IPC and held that the offence for which the contender was tried ultimately resulted in acquittal on account of settlement out of court. In such case the appellant could not have been denied the appointment on the ground of the prosecution of the year 2006 when his candidature was being considered in the year 2013/2014.

18. In the case of Pawan Kumar Vs. Union of India & another 2023(12) SCC 317, the Supreme Court has held as under:-

"17. One distinguishing factor, as noticed above, is that the criminal complaint/FIR in the present case was registered post submission of the application form. We have also taken into account the nature of the allegations made in the criminal case and that the matter was of trivial nature not involving moral turpitude. Further, the proceedings had ended in a clean acquittal. As is clear from para 38 in Avtar Singh [Avtar Singh v. Union of India, (2016) 8 SCC 471 : (2016) 2 SCC (L&S) 425] , all matters cannot be put in a straitjacket and a degree of flexibility and discretion vests with the authorities, must be exercised with care and caution taking all the facts and circumstances into consideration, including the nature and type of lapse. "

In the aforesaid case the Supreme Court has considered the position that though the authorities are at liberty and have a discretion to consider the candidature of the candidate but that discretion must be exercised with care and caution taking all the facts and circumstances of the case into consideration including the nature and type of lapse of the employee/applicant for employment.

19. In the present case it is clear that the respondents have dealt with the case with a mind that the case against the petitioner was was proved and that he has won over or threatened or intimidated the complainant to bring about the compromise. The respondents seem to be under impression that the compromise automatically means disqualification for the post in question. The respondents are having discretion to consider the nature of compromise by arriving at a prima facie finding whether the case against the petitioner was false and what were the circumstances behind the compromise.

20. In the present case, the case admittedly was a dispute between neighbours. Even as per the prosecution allegation, the petitioner was not the main assailant and his brother is stated to be main assailant. The petitioner, his brother and father were roped in the criminal case. In all the three rounds of consideration by the State Authorities they have not come out with a single word that what was the injury sustained by the complainant of the case to justify prosecution of the petitioner under Section 325 of IPC. Looking to such factual scenario, the case against the petitioner appears to be trivial and false.

21. It is further relevant fact here that even as per the circular of Home Department by which it is bound and issued on 24.07.2018, the offence under Section 325 of IPC has not been enumerated as an offence involving moral turpitude. As already held by coordinate Bench in WP 11143/2017, the subsequent circular will be applicable even for cases earlier to date of said circular because there has

been no change in definition of the offence in IPC. For this reason also the rejection of candidature of the petitioner seems to be unjustified.

22. If the respondents were not satisfied with the compromise acquittal of the petitioner, they should have mentioned reasons in the impugned order and rather in three orders passed by them from time to time, nothing is mentioned that how they disbelieved the compromise acquittal of the petitioner not to be a clean and honorable acquittal and what is the material available with the respondents to believe that the prosecution against the petitioner was true and correct so as to assess the character antecedents of the petitioner in a negative manner. No enquiry was conducted by the respondents to arrive at such a conclusion that what is the character of the petitioner on account of which he cannot be given the benefit of acquittal in the case under Section 325 IPC and that what is the material available with the respondents to believe that the allegation against the petitioner was truthful.

23. In view of the aforesaid this Court has no hesitation in holding that the rejection of candidature of the petitioner by the respondents was bad in law. The impugned order P/11 and all the orders adverse to the petitioner prior to the order Annexure P/11 are set-aside.

24. The respondents are directed to give effect to the result of the petitioner of written examination and trade test and if any person successful in the test having lower merit in the category of the petitioner has been given appointment then the petitioner be also given appointment on the post of Constable (Driver). The petitioner shall be entitled to the seniority from the date of appointment of such other person who may have been appointed in his category having merit immediately lower than the petitioner. However, he will not be entitled to any back-wages.

25. With the aforesaid, the petition is allowed and disposed of.

(VIVEK JAIN) JUDGE MISHRA